

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302771	HANSON VS RICHARD S. SAPUTO, AN INDIVIDUAL	MOTION TO ENFORCE SETTLEMENT (CCP 664.6) BY LAWRENCE E. HANSON

Tentative Ruling:

No opposition filed.

Motion to Enforce Settlement Pursuant to CCP 664.6 by Lawrence E. Hanson GRANTED.

Plaintiff's Proposed Order filed on 6.09.26 to be signed by the court.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507287	MANAVIE VS EXEL INC.	MOTION FOR LEAVE TO AMEND ANSWER ON COMPLAINT OF ARLETA L. MANAVIE BY EFRAIN WILLIAMS RIVAS SANCHEZ

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion"].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment "open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial." (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Here, Defendant did not specifically give information in compliance with CRC 3.1324 as to when the facts were discovered leading to the motion to file an amended answer or why that was not made earlier. However, sufficient information is provided as to the time line of events, and that, with the court finding an absence of prejudice, merits the granting of the motion.

Motion for Leave to File First Amended Answer GRANTED.

The proposed First Amended Answer attached as Exhibit 1 to Defendant's Motion shall be deemed filed and served as of the date of this Order.

Trial Setting Conference and Motion for Preference confirmed for 8.19.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508299	LARA-MARTINEZ VS UNIVERSAL CONSTRUCTION AND ENGINEERING, A CORPORATE ENTITY FORM UNKNOWN	MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT

Tentative Ruling: No tentative ruling.

If Plaintiff has filed an amended complaint, then motion is vacated and Case Management Conference continued to 10.05.26. If not filed, then Motion to Strike hearing is continued to 8.19.26 to address the merits of the motion and the Case Management Conference is continued to 8.19.26 as well.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508778	TORRES VS COUNTY OF RIVERSIDE	HEARING ON MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF MARIA TORRES BY COUNTY OF RIVERSIDE, RIVERSIDE COUNTY SHERIFFS DEPARTMENT, OFFICER JESUS ENRIQUE MORALES-DAVILA

Tentative Ruling: The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Once the defendant has met its burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense thereto. (Code Civ. Proc. § 437c(p)(2).) To satisfy this burden, the plaintiff cannot rely upon the allegations or denials in its pleadings but